

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Colonial Stock Act, 1877	40 & 41 Vict. c. 59.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Copyright Act, 1911	1 & 2 Geo. 5. c. 46.
Seal Fisheries (North Pacific) Act, 1912 ...	2 & 3 Geo. 5. c. 10.
Indian and Colonial Divorce Jurisdiction Act, 1926.	16 & 17 Geo. 5. c. 40.
Statute of Westminster, 1931	22 & 23 Geo. 5. c. 4.
Visiting Forces (British Commonwealth) Act, 1933.	23 & 24 Geo. 5. c. 6.
Colonial Stock Act, 1934	24 & 25 Geo. 5. c. 47.
Exchange Control Act, 1947	10 & 11 Geo. 6. c. 14.
Merchant Shipping Act, 1948	11 & 12 Geo. 6. c. 44.
British Nationality Act, 1948	11 & 12 Geo. 6. c. 56.
Merchant Shipping (Safety Convention) Act, 1949.	12, 13 & 14 Geo. 6. c. 43.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.
Diplomatic Immunities (Commonwealth Countries and Republic of Ireland) Act, 1952.	15 & 16 Geo. 6. & 1 Eliz. 2. c. 18.
Visiting Forces Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.
Copyright Act, 1956	4 & 5 Eliz. 2. c. 74.
Naval Discipline Act, 1957	5 & 6 Eliz. 2. c. 53.
Import Duties Act, 1958	6 & 7 Eliz. 2. c. 6.
British Nationality Act, 1958	6 & 7 Eliz. 2. c. 10.
Emergency Laws (Repeal) Act, 1959	7 & 8 Eliz. 2. c. 19.

CHAPTER 53

Oil Burners (Standards) Act, 1960

ARRANGEMENT OF SECTIONS

Section

1. Safety standards and instructions for use of oil heaters.
2. Prohibition of sale, etc., of oil heaters or component parts not complying with regulations.
3. Inspection and testing of oil heaters and component parts.
4. Offences.
5. Power of local authority to prosecute.
6. Expenses.
7. Exercise of power to make regulations, or an order under s. 9.
8. Interpretation.
9. Short title, commencement and extent.

An Act to make provision for minimum standards of efficiency and safety in respect of oil-burning appliances; and for purposes connected therewith. [29th July, 1960]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Safety standards and instructions for use of oil heaters.

1.—(1) The Secretary of State may by regulations provide—

- (a) for requiring oil heaters of such class or description as may be specified in the regulations, or any component part of an oil heater, being a part of such class or description as may be so specified, to comply with such standards of safety as in his opinion are appropriate to reduce or prevent the risk of fire;
- (b) for requiring oil heaters of such class or description as may be so specified to bear, by means of such a label or such other means as may be so specified, instructions on such matters as may be prescribed as to the working and use of the oil heaters;
- (c) for any other matter for which regulations are authorised under this Act.

(2) Regulations made under this section may contain different provisions for different classes or descriptions of oil heaters or component parts of oil heaters and, in the case of regulations made for the purposes of paragraph (a) of the foregoing subsection, may prescribe the means for ascertaining for the purposes of this Act whether any oil heaters or component parts comply with the requirements of the regulations.

Prohibition of sale, etc., of oil heaters or component parts not complying with regulations.

2.—(1) If any person in the course of a business sells, or lets under a hire-purchase agreement or on hire, or has in his possession for the purpose of selling or letting, an oil heater and either—

- (a) the oil heater, or a component part of it, does not comply with any standard of safety prescribed for the class or description of oil heater, or as the case may be, component part, to which the oil heater or component part belongs; or
- (b) the oil heater does not bear instructions in compliance with the requirements of any regulations made for the purposes of sub-paragraph (b) of section one of this Act,

he shall, subject to the provisions of this section, be guilty of an offence.

(2) If any person, in the course of a business, sells, or has in his possession for the purpose of selling, a component part intended for, but not embodied in, an oil heater and the component part does not comply with the standards of safety prescribed for the class or description of component part to which it belongs, he shall, subject to the provisions of this section, be guilty of an offence.

(3) A person shall not be convicted of an offence under subsection (1) of this section if he proves—

- (a) that the sale or letting was carried out, or he was in possession of the oil heater, as the case may be, as the agent of a person who was not acting in the course of a business or as the servant of such an agent; or
- (b) he reasonably believed that the oil heater would not be used in Great Britain; or
- (c) in the case of a letting on hire, the letting was incidental to the letting of premises; or
- (d) in the case of a sale under a credit-sale agreement or a letting under a hire-purchase agreement, he had at no time possession of the oil heater and only became the owner thereof at the time of entering into the agreement; or
- (e) in the case of any letting, the letting was lawful at the time the hirer or the hirer's predecessor in title obtained possession of the oil heater,

and a person shall not be convicted of an offence under subsection (2) of this section if he proves that the sale was carried out, or, as the case may be, he was in possession of the component part, as the agent of a person who was not acting in the course of a business, or as the servant of such an agent or that he reasonably believed that the component part would not be used in Great Britain.

(4) A person shall not be convicted of an offence under paragraph (a) of subsection (1) of this section or subsection (2) thereof in relation to an oil heater or component part if he proves that he had reasonable cause to believe that the oil heater or, as the case may be, component part, complied with the standards of safety prescribed for the class or description of oil heater or component part to which it belongs.

(5) Regulations under this Act may contain such provisions as appear to the Secretary of State necessary or expedient for authorising the sale, letting or possession of oil heaters or

component parts manufactured before the coming into operation of the regulations, or for authorising the sale or letting of oil heaters or component parts for such purposes as may be specified in the regulations, and a person shall not be guilty of an offence under subsection (1) of this section if he proves that the sale, letting or possession of the heater was authorised by those regulations, or of an offence under subsection (2) of this section if he proves that the sale or possession of the component part was so authorised.

Inspection
and testing of
oil heaters and
component
parts.

3.—(1) An officer of a local authority authorised by them in writing in that behalf may, subject to the provisions of this section, on producing if so required his authority, inspect an oil heater for the purpose of determining whether—

- (a) it is an oil heater which, or any component part of which, is of a class or description to which the requirements of any regulations under this Act apply, and
- (b) if it is such an oil heater, the oil heater, or any component part of it, complies with any such requirement as aforesaid,

and, subject as aforesaid and on producing if so required his authority, may inspect a component part intended for but not embodied in an oil heater for the purpose of determining whether—

- (c) it is a component part of a class or description to which the requirements of any regulations under this Act apply, and
- (d) if it is such a component part, it complies with any such requirement as aforesaid.

(2) A local authority may, subject to the provisions of this section, purchase an oil heater which, or any component part of which, is of a class or description to which any requirements of regulations under this Act apply, for the purpose of the carrying out of a test whether the oil heater, or component part, complies with any standard of safety prescribed for the class or description of oil heater or component part to which the oil heater or component part belongs, and a local authority may, subject as aforesaid, purchase a component part intended for but not embodied in an oil heater, being a component part of a class or description to which any requirements of regulations under this Act apply, for the purpose of determining whether the component part complies with any standard of safety prescribed for the class or description of component part to which it belongs.

(3) Any such test as is referred to in the last foregoing subsection shall be carried out, at the expense of the local authority, in such manner as may be prescribed by regulations under this Act, by

such person or body as may be authorised by or under the regulations to carry out such a test.

(4) An officer of a local authority shall not, by virtue of subsection (1) of this section, inspect an oil heater or component part, and a local authority shall not, by virtue of subsection (2) of this section, purchase an oil heater or component part, unless the oil heater or component part is kept on premises in the area of the authority for the purpose of being sold or let in the course of a business.

(5) Any person who wilfully obstructs any person in the exercise of his powers under subsection (1) of this section shall be guilty of an offence.

4.—(1) A person guilty of an offence under section two of this Act shall be liable on summary conviction to a fine not exceeding one hundred pounds, and a person guilty of an offence under section three of this Act shall be liable on summary conviction to a fine not exceeding twenty pounds. Offences.

(2) Where an offence under this Act which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary, or other similar officer of the body corporate, or any person purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of the offence.

In this subsection, the expression "director", in relation to any body corporate which is established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking and whose affairs are managed by its members, means a member of that body.

5. A local authority in England or Wales may institute proceedings for any offence under this Act committed in the area of the authority. Power of local authority to prosecute.

6. There shall be defrayed out of moneys provided by Parliament any increase attributable to this Act in the sums payable out of moneys so provided by way of Rate-deficiency Grant or Exchequer Equalisation Grant under the enactments relating to local government in England and Wales or in Scotland. Expenses.

7.—(1) The power of the Secretary of State to make regulations under this Act and his power to make an order under section nine of this Act shall be exercisable by statutory instrument. Exercise of power to make regulations, or an order under s. 9.

(2) Any statutory instrument containing regulations made under this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Interpretation. 8.—(1) In this Act the following expressions have the following meanings:—

22 & 23 Geo. 5.
c. 38. “Act of 1932” means the Hire Purchase and Small Debt
2 & 3 Eliz. 2. (Scotland) Act, 1932, as amended by the Hire-Purchase
c. 51. Act, 1954;

“credit-sale agreement” means an agreement for the sale of goods under which the whole or part of the purchase price is payable by instalments, except that, as respects Scotland, it does not include an agreement to sell under a contract to which the Act of 1932 applies;

1 & 2 Geo. 6.
c. 53. “hire-purchase agreement”, as respects England and Wales, has the same meaning as in the Hire-Purchase Act, 1938, and, as respects Scotland, means a contract to which the Act of 1932 applies; and, as respects Scotland, references to letting under a hire-purchase agreement and to a hirer under such a letting shall include references to an agreement to sell under such a contract as aforesaid and to a purchaser under such an agreement respectively;

“local authority”, as respects England and Wales, means the council of a county borough, or a county district, the council of a metropolitan borough, or the Common Council of the City of London, and, as respects Scotland, means a county or town council;

16 Geo. 6 & 1
Eliz. 2. c. 44. “oil heater” means any appliance suitable for use in a dwelling-house or other residential premises and designed for the heating of space by means of the burning of kerosene within the meaning of Part VI of the Customs and Excise Act, 1952, not being an appliance designed for use with a flue for the removal into the open air either directly or by connection with another flue or flues, of gases produced by the burning of kerosene;

“prescribed” means prescribed by regulations under this Act.

(2) In this Act any reference to component parts of oil heaters includes a reference to burners and to wicks.

Short title,
commence-
ment and
extent.

9.—(1) This Act may be cited as the Oil Burners (Standards) Act, 1960.

(2) This Act shall come into operation on the first day of January, nineteen hundred and sixty-one, or such earlier day as the Secretary of State may by order appoint.

(3) This Act shall not extend to Northern Ireland.

